

Reported

IN THE HIGH COURT OF HIMACHAL PRADESH AT SHIMLA  
ON THE 2<sup>nd</sup> DAY OF JUNE, 2022  
BEFORE

HON'BLE MS. JUSTICE JYOTSNA REWAL DUA

**CIVIL WRIT PETITION (ORIGINAL APPLICATION)**  
**No.640 of 2020**

**Between:-**

H.P. STATE ELECTION DEPARTMENT,  
NON GAZETTED EMPLOYEES ASSOCIATION,  
THROUGH ITS PRESIDENT VINOD SHARMA  
S/O LATE SHRI SOM KRISHAN SHARMA,  
R/O SOM NIWAS, MINI KUFTADHAR, SHIMLA

.....PETITIONER

(BY MRS. RANJANA PARMAR, SENIOR ADVOCATE  
WITH MR. KARAN SINGH PARMAR, ADVOCATE)

AND

1. STATE OF HIMACHAL PRADESH  
THROUGH SECRETARY (ELECTIONS)  
TO THE GOVERNMENT OF HIMACHAL PRADESH,  
SHIMLA-2
2. SECRETARY FINANCE TO THE GOVERNMENT  
OF HIMACHAL PRADESH, SHIMLA-2
3. CHIEF ELECTORAL OFFICER,  
HIMACHAL PRADESH, KASUMPTI,  
SHIMLA-9.
4. CHIEF ELECTION COMMISSIONER OF INDIA,  
THROUGH ITS SECRETARY, NEW DELHI

.....RESPONDENTS

(MR. ARVIND SHARMA, ADDITIONAL ADVOCATE  
GENERAL WITH MR. NARENDER SINGH THAKUR,  
DEPUTY ADVOCATE GENERAL, FOR R-1 TO R-3,

MR. ANKUSH DASS SOOD, SENIOR ADVOCATE WITH  
MR. ARJUN LALL, ADVOCATE, FOR R-4)

JUDGMENT RESERVED ON : 18.05.2022

PRONOUNCED ON : 02.06.2022

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*This petition coming on for hearing this day, the Court passed the following:*

### **ORDER**

The employees working in different capacities in the State Election Department are members of the petitioner, a registered Association. The short and simple point being put forth by the petitioner is that the respondents are required to pay honorarium to such of the employees of State Election Department, who perform duties in Vidhan Sabha Elections.

#### **2. Pleadings**

##### **2(i). Pleadings of petitioner:-**

The petitioner has pleaded that its members have been working in the Election Department and performing election duties assigned to them, be it for the Parliamentary or the State Legislative Assembly Elections. Honorarium for discharging election duties was paid by the respondent-State till 1998. In the year 1998, simultaneous elections were held for Parliament and Vidhan Sabha/State Legislative Assembly. Members of the petitioner-Association on election duty were paid honorarium for Parliamentary as well as State Legislative Assembly elections, but subsequently, the State stopped paying honorarium for

duties performed by the members of the petitioner-Association (employees of the State Election Department) in State Legislative Assembly elections. Petitioner-Association pointed out its grievances regarding requirement to pay honorarium to its members for performing duties in State Legislative Assembly elections. These grievances though were considered by the respondents in various meetings, however, they have not been redressed till date.

**2(ii). Pleadings of respondents No.1 to 3:-**

The State of Himachal Pradesh through the Secretary (Elections), Secretary (Finance) to the Government of Himachal Pradesh and Chief Electoral Officer, Himachal Pradesh have filed a common reply. Their reply states that honorarium for Lok Sabha and Vidhan Sabha elections was being paid to the election staff since 1977. The Election Commission of India in its letter dated 23.06.1998, had directed all the States to pay honorarium to all Officers and Staff of Election Department at the rate of one month's pay for the conduct of all elections to Parliament and State Legislative Assemblies or simultaneous elections. With effect from the year 1998, in the State of Himachal Pradesh honorarium is being paid to the Election staff only for Lok Sabha general elections.

Honorarium in connection with general elections to Vidhan Sabha was discontinued by the State Government w.e.f. 1998 owing to 100% liability on the State. 100% expenditure on account of Lok Sabha election is borne by the Government of India and in case of Vidhan Sabha election, 100% expenditure is borne by the respective State Government. In case of simultaneous elections to Lok Sabha & Vidhan Sabha, the expenditure is borne on the basis of 50:50 by Government of India & State Government. It has further been stated in the reply that the matter for paying honorarium to the officers and staff of the Election Department in connection with conduct of Vidhan Sabha elections was taken up many times with the State Finance Department, but the Finance Department regretted its inability to approve the proposals. Finance Department's view as expressed in office communication dated 30.06.2017 is that the Election Staff has little extra work during elections, but for the rest of the time, they have very little work, therefore, there is no justification to pay them honorarium.

**2(iii). Pleadings of respondent No.4:-**

Respondent No.4, i.e. Election Commission of India, has filed its separate reply to the writ petition. The

stand therein is that anomalies, inconsistencies and discrepancies existed in matter of payment of honorarium to the officers appointed for the conduct of elections. In order to bring uniformity and for removing doubts pertaining to payment of honorarium in respect of elections held to Parliament and State Legislative Assemblies, the Election Commission of India issued letter dated 23.06.1998, directing the State Governments to pay honorarium to all Officers and employees directly connected with elections in the States not exceeding one month's pay of the concerned employees. It has further been submitted that vide letter dated 26.02.2014, respondent No.4 had informed all the States of its decision to increase the fixed component of remuneration to Booth Level Officers from Rs.3000/- per annum to Rs.5000/- per annum. Directions were accordingly issued to the State Governments to make necessary provision in the budget for meeting the expenditure on account of increased remuneration. The stand of Election Commission of India is that instructions issued in letter dated 23.06.1998 make no distinction between Parliamentary and State Legislative Assembly elections regarding payment of honorarium. It has further been informed that in States of Punjab, Haryana &

Rajasthan and Union Territory of Chandigarh, honorarium for general elections to State Legislative Assembly is being paid by the concerned State Government. Respondent No.4 has admitted the contention of the petitioner that honorarium is liable to be paid to the officers and staff of the Commission for the duties performed by them in Vidhan Sabha/State Legislative Assembly Elections.

**3.** I have heard the submissions advanced by learned counsel for the parties who have reiterated their respective stands taken in pleadings and also gone through the material available on record. With the assistance of learned counsel for the parties, I have also considered the applicable legal provisions and the law on the subject.

**4. Observations**

**4(i).** Petitioner's claim of honorarium for performing duties during State Legislative Assembly elections, is based upon letter dated 23.06.1998 issued by the Election Commission of India (respondent No.4). It will be apposite to reproduce the contents of this letter, which are germane for adjudicating the grievances raised in the writ petition:-

*"The Chief Secretaries/Administrators,  
All States and Union Territories.*

*Subject: General Elections-Payment of honorarium-  
regarding.*

*It has been brought to the notice of the Commission that some anomalies exist in matter of payment of Honorarium to the officers appointed/designated as District Election Officers, Returning Officers, Assistant Returning Officers, etc. for the conduct of general elections in the State. On the one hand some of the States have been granting a minimum of one month pay as honorarium to non-gazetted staff for the conduct of elections, on the other, officers designated by the Commission as DEOs, ROs, AROs, etc. are being paid Rs.500/- to Rs.1200/-.*

*The above position has resulted in a situation where in some cases the staff in lower grades are getting more amount as honorarium than the DEOs, ROs etc.*

*Taking into account the ground realities and in order to bring uniformity and to clarify any doubts, the Commission has decided that –*

- (i) the payment of honorarium should be made equitable to all employees directly connected with elections in the States and Union Territories.*
- (ii) Payment of such honorarium should not exceed the total pay of one month of the concerned employees.*
- (iii) Such payments will be made in respect of all elections held to Parliament and Assemblies.*
- (iv) The categories of staff who shall be eligible for payment of honorarium will be decided by the State Government concerned in consultation with the Chief Electoral Officer of the State/UT concerned.*

*Kindly acknowledge.*

*Yours faithfully  
Sd/-  
Secretary”*

Respondent No.4 has admitted issuing the above extracted letter. It is the pleaded case of respondent No.4 that for removing the anomalies and inconsistencies existing in matter of payment of honorarium to the Officers appointed for the conduct of elections, letter dated 23.06.1998 was issued. The letter states that payment of honorarium should be made equitable to all employees not

exceeding total pay of one month of the concerned employee, who is directly connected with the elections in the States and Union Territories. The letter also states that payments of honorarium are to be made in respect of elections held not only to the Parliament but also to the State Legislative Assemblies. It will also be worthwhile to extract relevant pleadings in verbatim from the reply filed to the writ petition by respondent No.4:-

*“2. That it is hereby submitted that it was observed by the Election Commission of India that anomalies, inconsistencies and discrepancies exist in matter of payment of Honorarium to the officers appointed for the conduct of elections. Therefore, Election Commission of India issued the letter dated 23<sup>rd</sup> June, 1998 in order to bring uniformity and remove doubts pertaining to the payment of honorarium in respect of all elections held to Parliament and Legislative Assemblies.*

*Parawise reply .....*

*6.IX. That the contents of the para are admitted to the extent that honorarium is liable to be paid to the officers and staff of the Commission for the duties performed by them in the Vidhan Sabha Elections.....*

*XII.B. That the contents are denied to the extent that actions of replying respondent in any manner against the relevant rules and instructions. In fact, the instructions dated 23.06.1998 issued by the Election Commission of India are equally applicable, and there is no distinction for both i.e. Parliamentary Elections as well as for the Legislative Elections.....”*

From the pleadings of the parties, it is also borne out that in neighbouring States of Punjab, Haryana, Rajasthan and Union Territory of Chandigarh, the concerned State Government is paying honorarium for

general elections to the Legislative Assembly. Respondent No. 4 has also submitted in para 6.X of its reply that from time to time, it has “raised the matter for allowing one month’s basic pay equivalent honorarium for Vidhan Sabha Election. However, subject to the directions of this Hon’ble Court in the present matter, it is submitted that the replying respondent will again raise the matter and direct the Government of Himachal Pradesh to make necessary provisions in the budget for meeting the expenditure and for allowing one month’s basic pay equivalent honorarium for Vidhan Sabha Elections.”

In view of the pleadings of the parties, the core issue that arises for determination is whether the instructions issued by the Election Commission of India dated 23.06.1998 are binding upon the respondent-State. For deciding this issue, Article 324(1) of the Constitution of India may first be referred to, which reads as under:-

*“324. Superintendence, direction and control of elections to be vested in an Election Commission.-(1) The superintendence, direction and control of the preparation of the electoral rolls for, and the conduct of, all elections to Parliament and to the Legislature of every State and of elections to the offices of President and Vice-President held under this Constitution shall be vested in a Commission (referred to in this Constitution as the Election Commission).”*

By now, it is well settled that the words 'superintendence, direction, control' and 'conduct of all elections' have been used in Article 324 in broadest terms covering entire election process. The superintendence, direction, control and conduct of all elections to the Parliament & Legislative Assembly of every State vests in the Election Commission. The phrase 'conduct of elections' has been held to be of wide amplitude, which would include power to make all necessary provisions for conducting free and fair elections. In ***Union of India Versus Association for Democratic Reforms and another, (2002) 5 SCC 294***, one of the question that arose for consideration was whether the Election Commission was empowered to issue directions as ordered by the High Court. The Hon'ble Supreme Court considered various precedents including the decision in ***Mohinder Singh Gill v. Chief Election Commissioner, (1978) 1 SCC 405***. In para 20 of the judgment, the Hon'ble Apex Court observed that when the Act or Rules are silent on a particular subject and the authority implementing the same has constitutional or statutory power to implement it, the Court can necessarily issue directions or orders on the said subject to fill the vacuum or void till the suitable law is enacted. The Hon'ble

Apex Court summed up the legal and constitutional position in para 46 of the judgment. The principles relevant for the purpose of resolving present controversy, as summed up in para 46 of the judgment, are as under:-

*“46. To sum up the legal and constitutional position which emerges from the aforesaid discussion, it can be stated that:*

*1. The jurisdiction of the Election Commission is wide enough to include all powers necessary for smooth conduct of elections and the word “elections” is used in a wide sense to include the entire process of election which consists of several stages and embraces many steps.*

*2. The limitation on plenary character of power is when Parliament or State Legislature has made a valid law relating to or in connection with elections, the Commission is required to act in conformity with the said provisions. In case where law is silent, Article 324 is a reservoir of power to act for the avowed purpose of having free and fair election. The Constitution has taken care of leaving scope for exercise of residuary power by the Commission in its own right as a creature of the Constitution in the infinite variety of situations that may emerge from time to time in a large democracy, as every contingency could not be foreseen or anticipated by the enacted laws or the rules. By issuing necessary directions, the Commission can fill the vacuum till there is legislation on the subject. In Kanhiya Lal Omar case the Court construed the expression “superintendence, direction and control” in Article 324(1) and held that a direction may mean an order issued to a particular individual or a precept which many may have to follow and it may be a specific or a general order and such phrase should be construed liberally empowering the Election Commission to issue such orders.”*

The role of Election Commission and the extent to which it can exercise its power under the constitutional

framework, again came up for consideration in ***Public Interest Foundation and others Versus Union of India and another, (2019) 3 SCC 224***. Mohinder Singh Gill's case, supra, was noticed by the Hon'ble Apex Court in this judgment, wherein it was held that constitutionally appointed authority, the Election Commission, takes over the whole conduct and supervision of the mammoth enterprise involving a plethora of details and variety of activities and starts off with the notification of the timetable for the several stages of the election. An administrative machinery and technology to execute these enormous and diverse jobs is fabricated by the Act, creating officers, powers and duties, delegation of functions and location of polling stations. For holding free and fair elections, the Election Commission is vested with comprehensive responsibilities of superintendence, direction and control of conduct of elections covering powers, duties and functions that may be administrative or other, depending upon the circumstances. The directions issued in Mohinder Singh Gill's case, supra, regarding role of Election Commission were noticed in Public Interest Foundation's case as under:-

*"66. Further, the Court observed in Mohinder Singh Gill that a re-poll for a whole constituency under compulsion of circumstances may be directed for the conduct of*

*elections and can be saved by Article 324 provided it is bona fide and necessary for the vindication of the free verdict of the electorate and the abandonment of the previous poll was because it failed to achieve that goal. The Court ruled that even Article 324 does not exalt the Commission into a law unto itself. Broad authority does not bar scrutiny into specific validity of a particular order. Having said that, the Court passed the following directions: (SCC p.452, para 92)*

*"92.... '... 2(a) The Constitution contemplates a free and fair election and vests comprehensive responsibilities of superintendence, direction and control of the conduct of elections in the Election Commission. This, responsibility may cover powers, duties and functions of many sorts, administrative or other, depending on the circumstances.*

*(b) Two limitations at least are laid on its plenary character in the exercise thereof. Firstly, when Parliament or any State Legislature has made valid law relating to or in connection with elections, the Commission shall act in conformity with, not in violation of such provisions but where such law is silent Article 324 is a reservoir of power to act for the avowed purpose of, not divorced from pushing forward a free and fair election with expedition. Secondly, the Commission shall be responsible to the rule of law, act bona fide and be amenable to the norms of natural justice in so far as conformance to such canons can reasonably and realistically be required of it as fairplay-in-action in a most important area of the constitutional order, viz., elections. Fairness does import an obligation to see that no wrong-doer candidate benefits by his own wrong. To put the matter beyond doubt natural justice enlivens and applies to the specific case of order for total re-poll although not in full panoply but inflexible practicability. Whether it has been complied with is left open for the Tribunal adjudication."*

67. *In the concurring judgment in Mohinder Gill, Goswami, J., with regard to Article 324, observed thus in para 113 (SCC pp.459-60)*

*"113. ...Since the conduct of all elections to the various legislative bodies and to the offices of the President and the Vice-President is vested under Article 324(1) in the Election Commission, the framers of the Constitution took care to leaving scope*

*for exercise of residuary power by the Commission, in its own right, as a creature of the Constitution, in the infinite variety of situations that may emerge from time to time in such a large democracy as ours. Every contingency could not be foreseen, or anticipated with precision. That is why there is no hedging in Article 324. The Commission may be required to cope with some situation which may not be provided for in the enacted laws and the rules.”*

Thus the superintendence, direction, control and conduct of all elections to parliament and legislature of every State vest in the Election Commission. The phrase ‘conduct of elections’ has been held to be of wide amplitude, which would include power to make all necessary provisions for conducting free and fair elections. Article 324 is a reservoir of power for Election Commission to act for the purpose of pursuing the goal of a free and fair election. The Election Commission has plenary power and its view has to be given weightage. It has power to supervise the conduct of free and fair election. However, the power has its limitations. The Election Commission has to act in conformity with law made by Parliament and it cannot transgress the same.

**4(iii).** It is not the case of respondents No.1 to 3 that there is any legislation on the subject, which debars the State Government from paying honorarium to the Election staff discharging duties in elections to Legislative Assembly.

The field then would be governed by Article 324 of the Constitution of India. The instructions issued by the Election Commission of India regarding paying honorarium would then be binding on the State Government. Issuance of letter dated 23.06.1998 by the Election Commission of India is an admitted position. The genesis of instructions contained in this letter was the anomalies existing in different States in respect of payment of honorarium to the election staff discharging duties in elections to the Parliament as well as to State Legislative Assemblies. For removing the anomalies, the Election Commission of India circulated these instructions. The instructions are self-speaking that :- honorarium is payable to the election staff engaged in discharging election duties, be it for Parliamentary or for State Legislative Elections ; No distinction can be made for paying honorarium for the purpose of Parliamentary as well as for State Legislative Assembly Elections ; The instructions do not differentiate between the Parliament and State Legislative Assembly Elections for purpose of payment of honorarium.

Respondent No.4-Election Commission of India has taken a specific stand that honorarium at the rates fixed by it, is payable not only for performing election duties

for the Parliamentary elections, but also for the elections to State Legislative Assemblies. For denying honorarium to the concerned staff for performing duties in State Legislative Assembly elections, the State Government cannot take shelter behind the view of the Finance Department that the “election staff may have little extra work during election but rest of the time they have very little work. Therefore, there is no justification to pay honorarium.” It is not in dispute that honorarium for performing duties in Parliamentary Elections is being paid to concerned staff of State Election Department in terms of instructions issued by respondent No. 4. Nature of work and duties performed in Elections be it for Parliament or for the State Legislative Assembly, essentially remains the same. It is not for the Finance Department to decide the issue of payment of honorarium to the officers and employees of Election Department directly connected with elections to State Legislative Assembly. The superintendence, direction and control with respect to conduct of all elections to the Parliament and Legislature of the State vest with the Election Commission of India. The Finance Department of the State Government cannot sit over the directions/instructions issued by the

Election Commission of India, source of which lies in Article 324 of the Constitution of India.

In terms of Section 13 CC of the Representation of the People Act, 1950 (in short 'Act'), the Officers referred to in Part IIA of the Act and all other officers or staff employed in connection with the preparation, revision and correction of the electoral rolls for, and the conduct of, all elections are to be deemed to be on deputation to the Election Commission for the period, during which they are so employed. Such Officers and staff during that period are subject to the superintendence, control and discipline of the Election Commission. Section 13CC of the Act reads as under:-

*“13CC. Chief Electoral Officers, District Election Officers, etc., deemed to be on deputation to Election Commission.- The officers referred to in this Part and any other officer or staff employed in connection with the preparation, revision and correction of the electoral rolls, for and the conduct of, all elections shall be deemed to be on deputation to the Election Commission for the period during which they are so employed and such officers and staff shall, during that period, be subject to the control, superintendence and discipline of the Election Commission.”*

Similar provision exists under Section 28A of the Representation of the People Act, 1951 is as under:-

*“28A. Returning officer, presiding officer, etc., deemed to be on deputation to Election Commission.- The returning officer, assistant returning officer, presiding officer, polling officer and any other officer appointed under this*

*Part, and any police officer designated for the time being by the State Government, for the conduct of any election shall be deemed to be on deputation to the Election Commission for the period commencing on and from the date of the notification calling for such election and ending with the date of declaration of the results of such election and accordingly, such officers shall, during that period, be subject to the control, superintendence and discipline of the Election Commission.”*

### **Conclusions & Directions**

**5.** From the above discussions, following conclusions are drawn :-

**(i).** The Officers performing election duties in terms of provisions of The Representation of the People Act are to be deemed to be on deputation to the Election Commission for the period during which they are so employed. Such staff during that period is subject to the control, superintendence and discipline of the Election Commission of India.

**(ii).** The superintendence, direction, control and conduct of all elections to the Parliament and to the Legislature of every State vest in the Election Commission of India.

**(iii).** Article 324 of the Constitution of India is a reservoir of power to the Election Commission of India to act for the purpose of ensuring fair and free elections. The words ‘superintendence, direction, control and conduct of

all elections' used in Article 324 of the Constitution are of wide amplitude, which include the power to make all necessary provisions for conducting free and fair elections including issuing instructions to cope up with some situations, which may not be provided for in the enacted laws and rules.

**(iv).** The Election Commission has to act in conformity with the laws made by the Legislature and it cannot transgress the same.

**(v).** Instructions dated 23.06.1998 issued by the Election Commission of India pertain to grant of honorarium to the staff of State Election Department performing duties in Elections. There is no law enacted by the respondent-State prohibiting grant of honorarium to the staff of State Election Department engaged for performing duties in Elections to State Legislative Assembly. The instructions issued by Election Commission of India on 23.06.1998 have binding effect upon the respondents-State. These instructions are equally applicable, providing no distinction between the honorarium to be paid for the Parliamentary as well as for the State Legislative Assembly Elections. Nature of work and duties performed in Elections be it for the Parliament or for the State

Legislative Assembly, essentially remains the same. Honorarium for performing duties in Parliamentary elections is being paid to the concerned staff of State Election Department in terms of instructions issued by the Election Commission of India. The honorarium in terms of instructions issued by Election Commission of India to the concerned staff for performing duties in State Legislative Assembly cannot be denied on account of untenable view of the State Finance Department.

In view of the aforesaid discussion, this writ petition is allowed. Respondents No.1 to 3 are directed to henceforth pay honorarium to all the Officers and employees of the State Election Department performing election duties for the conduct of elections to the State Legislative Assembly, in terms of instructions dated 23.06.1998 (Annexure R-1) issued by respondent No. 4-Election Commission of India.

The petition stands disposed of in the above terms, so also the pending miscellaneous application(s), if any.

Jyotsna Rewal Dua  
Judge

2<sup>nd</sup> June, 2022  
*Mukesh*